

Illinois Compiled Statutes (ILCS)

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Because the statute database is maintained primarily for legislative drafting purposes, statutory changes are sometimes included in the statute database before they take effect. If the source note at the end of a Section of the statutes includes a Public Act that has not yet taken effect, the version of the law that is currently in effect may have already been removed from the database and you should refer to that Public Act to see the changes made to the current law.

(15 ILCS 335/11) (from Ch. 124, par. 31)

(Text of Section before amendment by P.A. 104-536)

Sec. 11. Records.

(a) The Secretary may make a search of his records and furnish information as to whether or not a person has a current Standard Illinois Identification Card or an Illinois Person with Identification Card then on file, upon receipt of a written application therefor accompanied by the prescribed fee. However, the Secretary may not disclose medical information concerning an individual to any person, public agency, private agency, corporation or governmental agency unless the individual has submitted a written request for the information or unless the individual has given prior written consent for the release of the information to a specific person. This exception shall not apply to: (1) officers and employees of the Secretary who have a need to know the medical information in performance of their official duties, or (2) orders of a court of competent jurisdiction. When medical information is disclosed by the Secretary in accordance with the provisions of this Section, no liability shall rest with the Office of the Secretary as to the information is released for informational purposes only.

(b) Except as otherwise provided in this Section, the Secretary may release identifying information only to:

(1) officers and employees of the Secretary who have a need to know that information for issuance of driver's licenses, permits, or identification cards and investigation of fraud or misconduct;

(2) other governmental agencies for use in their official governmental functions;

(3) law enforcement agencies for a criminal or civil investigation, except as restricted by subsections (g) and (h);

(3-5) the State Board of Elections as may be required by an agreement the State Board of Elections has entered into with a multi-county voter registration list maintenance system; or

(4) any entity that the Secretary has authorized, by rule.

(c) Except as otherwise provided in this Section, the Secretary may release highly confidential personal information only to:

(1) officers and employees of the Secretary who have a need to access the information for the issuance of driver's licenses, identification cards and investigation of fraud or misconduct;

(2) law enforcement officials for a criminal or civil law enforcement investigation, except as restricted by subsections (g) and (h);

(3) the State Board of Elections for the purpose of providing the signature for completion of voter registration; or

(3) law enforcement officials for a civil or criminal law enforcement investigation, except as restricted by subsections (g) and (h);

by rule.

(e) The Secretary may not disclose an individual's social security number or any information obtained from the Social Security Administration without the written consent of the individual except: (i) to officers and employees of the Secretary who need to know the social security number in the performance of their official duties; (ii) as restricted by subsections (g) and (h) to law enforcement officials for a civil or criminal law enforcement investigation if an officer of the law enforcement agency has made a written request to the Secretary specifying the law enforcement investigation for which the social security number is being sought; (iii) under a lawful court order signed by a judge; (iv) to the Department of Veterans Affairs for the purpose of confirming veteran status to agencies and states responsible for the issuance of state identification cards for participation in the State verification service; or (v) the last 4 digits to the Illinois State Board of Education for purposes of voter registration and as may be required pursuant to an agreement for a voter registration list maintenance system. The Secretary retains the right to require verification regarding the validity of a request from law enforcement. If social security information is disclosed by the Secretary in accordance with this Section, no liability shall be incurred with the Office of the Secretary of State or any of its officers or employees, as the information is released for official purposes only.

(f) The Secretary of State shall not provide facial recognition search services or information obtained in the process of issuing an identification card to any federal, State, or local law enforcement agency or other governmental entity for the purpose of enforcing federal or State laws. This subsection shall not apply to requests from federal, State, or local law enforcement agencies or other governmental entities for facial recognition search services or information obtained in the process of issuing a driver's license or permit when the purpose of the request relates to criminal activity other than violations of immigration laws.

(g) Notwithstanding any other provision of law, the Secretary may not release restricted personal information or personally identifying information or disclosure described in subsection (d) to any immigration agent, as defined in Section 10 of the Immigration and Naturalization Service Act, unless necessary to comply with the following, to the extent that production of the information or documents is specifically required:

- (1) a lawful court order;
- (2) a judicial warrant signed by a judge appointed or commissioned pursuant to Article III of the Constitution of the United States; or
- (3) a subpoena for individual records issued by a federal or State court.

When responding to such a court order, warrant, or subpoena, the Secretary shall send those documents or information specifically requested. Within 3 business days of receiving a court order, warrant, or subpoena, the Secretary shall send a notification to the individual to whom such information was requested that a court order, warrant, or subpoena was received and the identity of the entity that presented the court order, warrant, or subpoena.

(h) The Secretary shall not enter into or maintain any agreement regarding the sale of highly restricted personal information or personally identifying information as described in subsection (d) unless all other parties to such agreement certify that the information obtained will not be used for civil immigration purposes or knowingly disclosed to any third party for any purpose related to civil immigration enforcement.

(Source: P.A. 103-210, eff. 7-1-24; 104-234, eff. 8-15-25.)

(Text of Section after amendment by P.A. 104-536)

Sec. 11. Records.

(a) The Secretary may make a search of his records and furnish information as to whether a person has a current Standard Illinois Identification Card or an Illinois Person with Identification Card then on file, upon receipt of a written application therefor accompanied by the prescribed fee. However, the Secretary may not disclose medical information concerning an individual to any person, public agency, private agency, corporation or governmental entity unless the individual has submitted a written request for the information or unless the individual has given prior written consent for the release of the information to a specific person. This exception shall not apply to: (1) officers and employees of the Secretary who have a need to know the medical information in performance of their official duties, or (2) orders of a court of competent jurisdiction. When medical information is disclosed by the Secretary in accordance with the provisions of this Section, no liability shall rest with the Office of the Secretary as the information is released for informational purposes only.

(b) Except as otherwise provided in this Section, the Secretary may release personally identifying information only to:

(1) officers and employees of the Secretary who have a need to know that information for issuance of driver's licenses, permits, or identification cards and investigation of fraud or misconduct;

(2) other governmental agencies for use in their official governmental functions;

(3) law enforcement agencies for a criminal or civil investigation, except as restricted by subsections (g) and (h);

(3-5) the State Board of Elections as may be required by an agreement the State Board of Elections has entered into with a multi-jurisdictional voter registration list maintenance system; or

(4) any entity that the Secretary has authorized, by rule.

(c) Except as otherwise provided in this Section, the Secretary may release highly restricted personal information only to:

(1) officers and employees of the Secretary who have a need to access the information for the issuance of driver's licenses, identification cards and investigation of fraud or misconduct;

(2) law enforcement officials for a criminal or civil law enforcement investigation, except as restricted by subsections (g) and (h);

(3) the State Board of Elections for the purpose of providing the signature for completion of voter registration; or

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(e) The Secretary may not disclose an individual's social security number or any information obtained from the Social Security Administration without the written consent of the individual except: (i) to officers and employees of the Secretary, who to know the social security number in the performance of their official duties; (ii) restricted by subsections (g) and (h) to law enforcement officials for a civil or criminal enforcement investigation if an officer of the law enforcement agency has made a written request to the Secretary specifying the law enforcement investigation for which the social security number is being sought; (iii) under a lawful court order signed by a judge; (iv) to the Department of Veterans Affairs for the purpose of confirming veteran status to agencies and states responsible for the issuance of state identification cards for participation in the State verification service; or (v) the last 4 digits to the Illinois State Board of Education for purposes of voter registration and as may be required pursuant to an agreement for a voter registration list maintenance system. The Secretary retains the right to require verification regarding the validity of a request from law enforcement. If social security information is disclosed by the Secretary in accordance with this Section, no liability shall be incurred with the Office of the Secretary of State or any of its officers or employees, as the information is released for official purposes only.

(f) The Secretary of State shall not provide facial recognition search services or information obtained in the process of issuing an identification card to any federal, State, or local law enforcement agency or other governmental entity for the purpose of enforcing federal or State laws. This subsection shall not apply to requests from federal, State, or local law enforcement agencies or other governmental entities for facial recognition search services or information obtained in the process of issuing a driver's license or permit when the purpose of the request relates to criminal activity other than violations of immigration laws.

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- (1) a lawful court order;
- (2) a judicial warrant signed by a judge appointed or commissioned pursuant to Article III of the Constitution of the United States; or
- (3) a subpoena for individual records issued by a federal or State court.

When responding to such a court order, warrant, or subpoena, the Secretary shall release only those documents or information specifically requested. Within 3 business days of receipt